

M/s Ganesh Polytex Ltd. v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 13 October 2009 · Writ-C No. 51326 of 2009 · Writ - C No. - 51326 of 2009 · **Writ disposed of; petitioner relegated to clause 4.6(f) estimate remedies.**

HEADNOTE

A writ for refund of system loading charges and demand charges is not maintainable without exhausting clause 4.6(f) of the U.P. Electricity Supply Code, 2005. Disputes regarding an estimate, including system loading charges, must first go to the authority one level higher than the sanctioning authority and then to the Consumer Grievance Redressal Forum. The petitioner was relegated to those statutory remedies.

FACTUAL SUMMARY

The petitioner yarn manufacturer obtained sanction and release of an 800 KVA load on a 33 kV independent feeder from the 132 kV Vilaspur sub-station. The 4 February 2009 estimate included Rs 8 lakh as system loading charges, and Rs 6 lakh was later realised as demand charges from June 2009. The company sought refund of both amounts with interest. The licensee objected that the writ was not maintainable without exhausting Supply Code remedies for estimate disputes.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.6

estimate disputes — alternative remedy

HOLDING

Disputes regarding an estimate, including every factor in the estimate such as system loading charges, must be referred under clause 4.6(f) to the authority one level higher than the sanctioning authority and, if the applicant remains aggrieved, to the Consumer Grievance Redressal Forum. A writ seeking refund of system loading charges and demand charges, without exhausting those remedies and without pleading any ground to overreach them, is not maintainable; the consumer is relegated to that statutory hierarchy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE SYSTEM LOADING CHARGES OF RS 8 LAKH AND DEMAND CHARGES OF RS 6 LAKH WERE REFUNDABLE

Merits of the estimate and the demand-charge recovery were left to the clause 4.6(f) hierarchy and the CGRF.